CHAPTER 38 Lok Adalat's and Other Courts

National Legal Services Authority[1]

Article 39A of the Constitution of India provides for free legal aid to the poor and weaker sections of the society and ensures justice for all. Further, Articles 14 and 22(1) of the Constitution also make it obligatory for the State to ensure equality before law and a legal system which promotes justice on the basis of equal opportunity to all. In the year 1987, the Legal Services Authorities Act was enacted by the Parliament which came into force on 9th November, 1995 to establish a nationwide uniform network for providing free and competent legal services to the weaker sections of the society on the basis of equal opportunity. The National Legal Services Authority (NALSA) has been constituted under the Legal Services Authorities Act, 1987 to monitor and evaluate implementation of legal aid programmes and to lay down policies and principles for making legal services available under the Act.

In every State, a State Legal Services Authority and in every High Court, a High Court Legal Services Committee have been constituted. The District Legal Services Authorities, Taluk Legal Services Committees have been constituted in the Districts and most of the Taluks to give effect to the policies and directions of the NALSA and to provide free legal services to the people and conduct Lok Adalats in the State.

The Supreme Court Legal Services Committee has been constituted to administer and implement the legal services programme insofar as it relates to the Supreme Court of India.

The NALSA lays down policies, principles, guidelines and frames effective and economical schemes for the State Legal Services Authorities to implement the Legal Services Programmes throughout the country.

Primarily, the State Legal Services Authorities, District Legal Services Authorities, Taluk Legal Services Committees, etc. have been asked to discharge the following main functions on regular basis:

1. To provide free and competent legal services to the eligible persons.
2. To organise Lok Adalats for amicable settlement of disputes.
3. To organise legal awareness camps in the rural areas.

The free legal services include:

1. Payment of court fee, process fees and all other charges payable or incurred in connection with any legal proceedings.
2. Providing service of lawyers in legal proceedings.
3. Obtaining and supply of certified copies of orders and other documents in legal proceedings.
4. Preparation of appeal, paper book including printing and translation of documents in legal proceedings.

The persons eligible for getting free legal services include: